



File No.: EXP202210347 (PS/00051/2023)

SANCTIONING PROCEDURE RESOLUTION

From the actions carried out by the Spanish Agency for Data Protection and based on the following,

BACKGROUND

FIRST: On 10/08/22, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint was directed against GRUPO MASSIMO DUTTI, S.A. with NIE: A78115201, responsible for the website ***URL.1 (hereinafter, the defendant), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts, according to the statements of the complainant, are related to the use of cookies and the obtaining of user consent. During the visit that the complainant claims to have made to the website on 28/09/21, it presented a banner on the first layer of consent in which there was no possibility to "reject all cookies" that were not technical or necessary; moreover, the design of the links was misleading as the button leading to the "manage cookies" option in the control panel uses a "link" design—highlighted or underlined text—while the "Accept all cookies" button uses a typical "button" design—a square box with text. Additionally, the colors and contrast of the buttons are also misleading as different colors were used for the various options presented. The complaint also indicates that it is not as easy to withdraw consent as it is to give it, and that once consent is given by clicking on the "accept all cookies" or "accept some groups of cookies" option through the control panel, it is not possible to withdraw it if one wishes to do so later.

SECOND: On 04/10/22, the Director of the Spanish Agency for Data Protection issued a decision of inadmissibility as, after analyzing the documents provided and the concurrent circumstances, the representation of the complainant was not considered sufficiently accredited.

THIRD: On 01/11/22, the complainant submitted a written appeal for reconsideration, which was accepted by the Director of the Spanish Agency for Data Protection on 15/11/22, taking into account the provisions of Article 5.6 of the LPACAP and after analyzing the document provided by the complainant in which they grant their representation to the organization NOYB (European Center for Digital Rights).

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FOURTH: On 16/03/23, this Agency accessed the website ***URL.1, confirming the following characteristics regarding its "Cookie Policy":

A.- Regarding the cookies detected upon accessing the website:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it has been verified that the following cookies are used:

a.1).- Strictly necessary cookies

(4):

Cookies
Domain
Description

_abck

***DOMINIO.1

This cookie is used to detect and defend against when a client attempts to reproduce a cookie. This cookie manages the interaction with online bots and takes appropriate measures.

bm_sz

***DOMINIO.1

This cookie is set by the Akamai Bot Manager provider. This cookie is used to manage the interaction with online bots. It also helps in fraud prevention.

OptanonConsent

***DOMINIO.1

OneTrust sets this cookie to store details about the category of cookies on the site and verify whether visitors have given or withdrawn consent for the use of each category.

ak_bmsc

***DOMINIO.1

Akamai uses this cookie to optimize site security by distinguishing between humans and bots.

a.2).- Performance cookies

(2):

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cookies

Domain

Description

AKA_A2

***DOMAIN.1

Akamai sets this cookie to improve performance and optimize the response time between the visitor and the website.

RT

***DOMAIN.1

Akamai sets this cookie to measure the page load time or other timers associated with the page.

Note: Akamai Technologies, Inc. is a corporation that provides, among other services, a distributed computing platform for the global delivery of Internet content and application distribution. It stores the content of a client company's server on its own servers. When a user (client) wants to access that content (usually digital media such as Audio, Graphics, Animation, Video), all or part is downloaded from an Akamai server instead of the client company's server.

The Cookie "AKA_A2" appears on the website ***URL.2 as strictly necessary, (***)URL.3)

The Cookie "RT" although it appears on the website ***URL.2 as performance but necessary to improve the performance of the website, (***)URL.4),

According to the entity, these cookies allow counting visits and traffic sources to measure and improve the performance of the website. All information collected by these cookies is aggregated and, therefore, anonymous.

a.3).- Unclassified Cookies

(4):

Cookies that could not be classified but are listed in the cookie list existing in the website's control panel as "strictly necessary cookies".

Cookie Key

Domain

ITXSESSIONID

***DOMAIN.1

MDSESSION

***DOMAIN.1

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Cookie Key

Domain

bm_mi

***DOMAIN.1

bm_sv

***DOMAIN.1

Note: These cookies that could not be classified appear in the cookie list existing in the website's control panel as "strictly necessary cookies" ***URL.1 → <> → <> → <>

B.- Regarding the information available about cookies on the homepage and their management: Upon first entering the website, a cookie information banner appears on the main page, with the following message:

"By clicking on 'Accept all cookies', you agree to have cookies stored on your device to enhance site navigation, analyze its usage, and assist with our marketing studies. <>

<>

<>

If you wish to manage the use of cookies through the link <> available in the information banner, the website displays a control panel where the different groups of cookies are pre-checked in the "OFF" position:

"Your privacy: Cookies and other similar technologies are an essential part of how our Platform works. The main purpose of cookies is to make your browsing experience more comfortable and efficient and to improve our services and the Platform itself. We also use cookies to show you advertising that is of interest to you when you visit third-party websites and apps. Here you can find all the information about the cookies we use and you can activate and/or deactivate them according to your preferences, except for those Cookies that are strictly necessary for the operation of the Platform. Please note that blocking some cookies may affect your experience on the Platform and its functionality. By clicking 'Confirm my preferences', the selection of cookies you have made will be saved. If you have not selected any option, clicking this button will equate to rejecting all cookies. For more information, you can visit our Cookie Policy. <>

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Technical or Necessary Cookies

<>

These cookies are necessary for the Platform to function and cannot be deactivated in our systems. They are usually set to respond to actions taken by you to receive services, such as adjusting your privacy preferences, logging into the site, or filling out forms. You can set your browser to block or alert the presence of these cookies, but some parts of the Platform will not function.

Functionality or Personalization Cookies

OFF ☐ ON

These cookies allow the Platform to offer better functionality and personalization. They may be set by us or by third parties whose services we have added to our pages. If you do not allow these cookies, some of our services may not function properly. To activate or deactivate the cookies, use the corresponding button. "Active" means that cookies can be used. "Inactive" means that cookies cannot

be used.

<>

Analytics Cookies

OFF ☐ ON

These cookies allow us to count visits and traffic sources so that we can measure and improve the performance of our Platform. They help us know which pages are the most or least popular and see how many people visit the site. If you do not allow these cookies, we will not know when you visited our Platform. To activate or deactivate the cookies, use the corresponding button. "Active" means that cookies can be used. "Inactive" means that cookies cannot be used.

<>

Advertising Cookies

OFF ☐ ON

These cookies may be present throughout the Platform, placed by our advertising partners. These third parties may use them to create a profile of your interests and show you relevant ads on other sites. If you do not allow these cookies, you may receive less targeted advertising. To activate or deactivate the cookies, use the corresponding button. "Active" means that cookies can be used. "Inactive" means that cookies cannot be used.

<>

Social Media Cookies

OFF ☐ ON

These cookies are set by a number of social media services that we have added to the site to allow you to share our content with your friends and networks. They are capable of tracking your browser across other sites and creating a profile of your interests. This may modify the content and messages you see on other web pages you visit. If you do not allow these cookies, you will not be able to see or use these sharing tools. To activate or deactivate the cookies, use the corresponding button. "Active" means that cookies can be used. "Inactive" means that cookies cannot be used.

<>

<> <> <>

If you choose <> without having modified any of the boxes from the "OFF" position to the "ON" position, or by clicking on the <> option with the intention of rejecting cookies that are not technical or necessary, in both cases, it is verified that the website continues to use the cookies detected initially, namely:

Cookies detected as
technical or necessary.

Necessary cookies according to
the "Cookie Policy" of

Akamai Technologies, Inc.

Unclassified cookies that the
entity

GRUPO

MASSIMO

DUTTI

states

are

necessary in its "Cookie
Policy"

_abck

bm_sz

OptanonConsent

ak_bmsc

AKA_A2

RT
ITXSESSIONID
MDSESSION
bm_mi
bm_sv

C).- Regarding the possibility of withdrawing consent for the use of cookies once granted. Once consent for the use of cookies has been granted through the option available in the initial banner or through consent given in the control panel <>, it is verified that the following own and third-party cookies are installed:

Cookie
Provider
Cookie
Provider
MUID
Bing.com
ttp
Tiktok.com
ts
Creativecdn.com
U
Creativecdn.com
CONSEND
Google.com
NID
Google.com
SOCS
Google.com
AEC
Google.com
CLID
Clarity.com
_pinterest_ct_ua
ct.pinterest.com
_ga
Google.com
1P_JAR
Google.com
_gid
Google.com

However, it is verified that there is no mechanism or access to the control panel that allows for the subsequent withdrawal of the granted consent and rejection of these cookies that had been previously accepted.

D.- Regarding the information provided in the "Cookie Policy:

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If you access the "Cookie Policy" through the link available in the cookie banner of the first layer or through the link available at the bottom of the main page, the website redirects the user to a new page ***URL.5, where it informs about what cookies are; the different types of cookies that exist, and

provides information about the type of cookies used on the website and their purpose. It also informs how to update the browser of the terminal equipment to manage cookies.

If you want to know the list of cookies that the website claims to use, you must access it through the links available in the control panel (<>), where the list of cookies used by the website and their purpose appears.

SIXTH: On 22/03/23, the Spanish Data Protection Agency's Directorate initiated sanctioning proceedings against the entity being claimed, upon finding reasonable indications of a violation of the provisions established in Article 22.2 of the LSSI, due to the irregularities detected on its website regarding the "Cookie Policy," namely, for the lack of sufficient information in the first layer about the purposes of the installation of cookies, with an initial fine of 5,000 euros and for the impossibility of managing the cookies used once consent has been given, with an initial fine of 5,000 euros.

SEVENTH: On 18/04/23, the claiming entity submitted a written statement of allegations regarding the initiation of the file in which, among other things, it states:

First.- Regarding the first of the alleged violations of Article 22.2 of the LSSI File No.: EXP202210347 (PS/00051/2023) Allegations to the Initiation Agreement attributed to my client "for the lack of sufficient information in the first layer about the purposes of the installation of cookies," it should be noted that in the Initiation Agreement this alleged non-compliance is described in detail as follows:

"The second of the reproduced banners (and the one that has been verified to be established at the time this initiation agreement is approved) is considered not to provide 'clear and complete' information about the purposes of the processing.

On the contrary, it merely states that cookies will be used 'to improve site navigation, analyze its use, and collaborate with our marketing studies.'

Such a generic reference is considered to lack sufficient specificity regarding the purposes of use and thus would violate the aforementioned Article 22 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce."

That is to say, as deduced from the literal wording of the Initiation Agreement, the text that was published on 23/09/2022 did comply with the requirement to include sufficient information in the first layer about the purposes of the installation of cookies, while the text that was published on 16/03/2023 did not meet that requirement.

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In light of that conclusion recorded in the Initiation Agreement as a reason for attributing a violation of the aforementioned Article 22.2 LSSI to my client, it should be noted that there is total equivalence regarding information about the purposes of the installation of cookies between the texts published on 23/09/2022 and 16/03/2023, as explicitly detailed in the following table:

Text published on 23/09/2022

Text published on 16/03/2023

"...analytical purposes..."

"...to improve site navigation, analyze its use..."

"...to show you advertising related to your preferences based on your browsing habits and your profile..."

"...to collaborate with our marketing studies..."

Therefore, given this total equivalence regarding information about the purposes of the installation of cookies between the texts published on 23/09/2022 and 16/03/2023, any claim of non-compliance with Article 22.2 LSSI based on the absence of sufficient information in the first layer about the purposes of the installation of cookies must be categorically denied.

In any case, even though it is considered that the text published on 16/03/2023 in the first layer complies with the Regulations, it has been restored and is currently published as referenced in the

Initiation Agreement as published on 23/09/2022.

It should be noted that the return to the wording that was published on 23/09/2022 is not caused, in any way, by the avoidance or rectification of a non-compliance. Rather, the intention is to improve based on the means of compliance that already existed, that is, the one referred to in the Initiation Agreement as published on 16/03/2023.

In fact, the publication of the text that was displayed on 16/03/2023 occurred due to human error that resulted in that text being published instead of the one that was published on 23/09/2022.

The text change now made, with the incorporation of the one referenced in the Initiation Agreement as published on 23/09/2022, can be seen in the screenshot below:

We use our own and third-party cookies for analytical purposes and to show you advertising related to your preferences based on your browsing habits and your profile. You can configure or reject cookies by clicking on "Cookie Settings." You can also accept all cookies by pressing the "Accept all cookies" button. For more information, you can visit our <>

<>

<>

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Second.- Regarding the second of the alleged violations of Article 22.2 of the LSSI attributed to my client "due to the impossibility of managing the cookies used once the initial consent has been given," it should be noted that such a violation is categorically denied, as the user has always had and continues to have the permanent option to manage cookies after giving initial consent through a link to the "Cookie Settings" where they can reject cookies with a simple click.

Specifically, once the user accepts cookies on the homepage of the website and selects the market (geographical) and catalog (women/men) they wish to access, they always have available in the horizontal menu located in the footer of the website the link to "Cookie Settings" (screenshot 1 below) with which they can access the console where they can reject cookies simply by clicking the "Reject all" button (screenshot 2 below) or re-accept them if they have previously rejected them (screenshot 3), through the corresponding buttons.

Even though this access to the "Cookie Settings" has been present and easily accessible to the user at all times (thus, as stated, the non-compliance referred to in the Initiation Agreement should be dismissed), access to the "Cookie Settings" has been multiplied, reiterated, or redundantly provided, as described below.

It should be emphasized that this multiplication, reiteration, or redundancy does not have any cause in avoiding or remedying a non-compliance. What is intended is the reinforcement of compliance, through a facilitation of access to the "Cookie Settings," which is nothing more than a facilitation or improvement based on the means of compliance that already existed.

Specifically, in addition to the link to "Cookie Settings," which has always been in the horizontal menu of the footer of the website:

- This same link has been included as the last of the links in the vertical menu located on the left side of the footer, just below the horizontal menu, as seen in the following screenshot, and where the link to Cookie Information or Privacy Policy is located.

- This same link has been included on the homepage of the website, just below the buttons to choose whether to go to the women's or men's catalog, as seen in the following screenshot.

For all the above reasons, through these Allegations, I hereby REQUEST that this document be considered presented and that the previous Allegations be recorded in the referenced File, and that, after the appropriate procedures, a Resolution be issued declaring the non-existence of any infringement attributable to MASSIMO DUTTI concerning the described facts and the indicated regulations, proceeding to archive the proceedings.

EIGHTH: On 04/19/23, this Agency accessed, once again, the website ***URL.1, confirming the following characteristics regarding its "Cookie Policy":

A.- Regarding the cookies detected upon accessing the website:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website in question and using the cookie detection tool of the Google Chrome browser (→ inspect → application → cookies), it has been verified that the following cookies are used:

Cookies detected as technical or necessary.

Necessary cookies according to the “Cookie Policy” of Akamai Technologies, Inc.

Unclassified cookies that the entity GRUPO MASSIMO DUTTI states are necessary in its “Cookie Policy”

_abck

bm_sz

OptanonConsent

ak_bmsc

AKA_A2

RT

ITXSESSIONID

MDSESSION

bm_mi

bm_sv

B.- Regarding the information available about cookies on the homepage and their management:

Upon entering the website for the first time, a banner appears on the main page with the following message:

We use our own and third-party cookies for analytical purposes and to show you advertising related to your preferences based on your browsing habits and your profile. You can configure or reject cookies by clicking on “Cookie Settings.” You can also accept all cookies by pressing the “Accept all cookies” button. For more information, you can visit our <>

<>

<>

If you wish to manage the use of cookies through the <> link available in the information banner, the website displays a control panel where the different groups of cookies are pre-checked in the “OFF” position:

Technical or necessary cookies

<>

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Functionality or personalization cookies

OFF → ON

<>

Analysis cookies

OFF → ON

<>

Advertising cookies

OFF → ON

<>

Social Media cookies

OFF → ON

<>

<> <> <>

If you choose <> without having modified any of the boxes from the “OFF” position to the “ON” position, or by clicking on the <> option with the intention of rejecting cookies that are not technical or

necessary, in both cases, it is verified that the website continues to use the same cookies detected at the beginning.

C).- Regarding the possibility of withdrawing consent for the use of cookies once granted.

Once consent for the use of cookies has been granted through the option available in the initial banner or through consent given in the control panel <>, it is verified that the following third-party cookies are installed:

MUID

.clarity.ms

/__Secure-1PAPISID .google.es

/APISID

.google.es

/__Secure-3PSID

.google.es

/SSID

A

.google.es

/__Secure-1PSID

.google.es

/__Secure-3PAPISID .google.com

/SAPISID

.google.com

/SSID

.google.com

/HSID A

.google.com

/SID

.google.es

/__Secure-1PSID

.google.com

/SIDCC

.google.com

/SID

.google.com

/__Secure-3PSID

.google.com

/__Secure-3PAPISID .google.es

/MUID 3

.bing.com

/__Secure-1PSIDCC .google.com

/APISID

.google.com

/__Secure-3PSIDCC .google.com

/SAPISID

.google.es

/__Secure-1PAPISID .google.com

/ANONCHK

.c.clarity.ms

/CLID

.clarity.ms

/NID

.google.es

/SEARCH_E

.google.com
/MR
.c.clarity.ms
/ts
.creativecdn.com/
_RwBf
.bing.com
/ACLUSR
.bing.com
/ACL
.bing.com
/OIDR
.bing.com
/SM
.c.clarity.ms
/BFB
.bing.com
/BFBUSR
.bing.com
/SRCHUSR
.bing.com
/SRCHD
.bing.com
/_ttp
.tiktok.com
/1P_JAR
.google.com
/AID
.google.com
/tt_viewer
.teads.tv
/AEC
.google.com
/CONSENT
.google.com
/SOCS
.google.com
/NID
.google.com
/OTZ
.google.com
/u
.creativecdn.com
/OID
.bing.com
/OIDI
.bing.com
/_pinterest_ct_ua
.ct.pinterest.com
/MR
.c.bing.com
/SRCHHPGUSR
.bing.com

/SRCHUID
.bing.com
/SRM_B
.c.bing.com

There is a link to the control panel at the bottom of the website <> that allows the user to manage the cookie groups again through the control panel. It is noted that now, (after accepting all cookies) the groups are pre-checked in the "ON" option.

However, if you wish to reject the use of cookies by clicking on the <> option or moving the slider from the "ON" position to the "OFF" position of the different cookie groups, and clicking on <>, it is observed that the website continues to use the third-party cookies installed when they were accepted at the beginning, making it impossible for the user, if they wish to change their mind, to deny consent now once granted.

D.- Regarding the information provided in the "Cookie Policy":

If you access the "Cookie Policy" through the link available in the cookie banner on the first layer or through the link available at the bottom of the main page, the website displays a document:

***URL.6

where it informs about what cookies are; the different types of cookies that exist and informs about the type of cookies used on the website and their purpose. It also informs how to update the browser of the terminal equipment to manage cookies.

If you want to know the list of cookies that the website claims to use, you must access through the links available in the control panel (<>), where the list of cookies used by the website and their purpose appears.

NINTH: On 04/24/23, a resolution proposal was made in the sense that the Director of the AEPD sanctions the complained party for violating the provisions of Article 22.2 of the LSSI, for not being able to withdraw consent once granted, for the use of cookies that are not technical or necessary, with a fine of 5,000 euros (five thousand euros) and considering that the message provided in the cookie information banner: "We use our own and third-party cookies for analytical purposes and to show you advertising related to your preferences based on your browsing habits and your profile. You can configure or reject cookies by clicking on "Cookie settings". You can also accept all cookies by pressing the "Accept all cookies" button. For more information,

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For information, you can visit our", is equivalent in terms of information about the purposes of the cookie installation to that published on 23/09/22, and does not contradict what is stipulated in Article 22.2 of the LSSI.

TENTH: On 17/05/23, the entity being complained against submitted allegations to the proposed resolution, where it stated, among other things, the following:

First.- Regarding the infringement of Article 22.2 of the LSSI attributed to my client for "the impossibility of rejecting the cookies used once initial consent has been given, even though there is a permanent link to the control panel," it should be noted that in the Proposed Resolution this alleged non-compliance is described in detail as follows:

"It has been verified that there is a mechanism or access to the permanent control panel at the bottom of the page <> that allows access to the control panel for managing cookies. However, if one wishes to reject the use of cookies by clicking on the <> option or moving the slider from the "ON" position to the "OFF" position and clicking on <>, it is observed that the website continues to use the third-party cookies installed when they were accepted at the beginning."

The operation described in the Proposed Resolution ("...if one wishes to reject the use of cookies by clicking on the <> option or moving the slider from the "ON" position to the "OFF" position and clicking

on <>, it is observed that the website continues to use the third-party cookies installed when they were accepted at the beginning.”), is not complete in that, as explained below, although the rejected cookies remained visible to the user, in no case were they used since they were blocked (the past tense is used due to the novelty explained in Allegation Second).

In this regard, it should be clarified that the user could reject the cookies used once initial consent was given through the control panel, in that:

- Tools were used to review cookie acceptance in real-time.
- All cookies were reviewed just before their use to verify that the user had accepted the category in which the cookie is incorporated.
- In case the user had rejected the cookies during navigation, they remained in the browser's cookie system, but in no case were they used, as their use was blocked through Javascript code.
- This operation applied to both first-party cookies and third-party cookies, with the exception of strictly necessary cookies.

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In the section “2. Cookie Blocking Model” of the document “Cookie System” which is included as Annex I, this model used so far on the Site is described and exemplified, consisting of blocking the use of cookies rejected by the user through Javascript code.

It should be noted that the operational novelty that follows this model and is presented in Allegation Second has been implemented as an improvement for demonstrating compliance with the Regulation, as we do not understand that the blocking model just described can be considered a non-compliance with it.

Before anything else, the cookie blocking model is considered to be a model fully in accordance with the applicable Regulation and, specifically, complied with Article 22.2 of the LSSI on which the sanction against my client is intended to be based.

That is to say, there has been an evolution from a system of blocking rejected cookies that already complied with the Regulation, to a model of deletion/expiration of rejected cookies (explained in Allegation Second) that improves the demonstration of compliance with Article 22.2 of the LSSI.

Second.- Therefore, within the process of continuous improvement in demonstrating compliance and due to its concern for the user, my client has implemented a technological solution so that rejected cookies are deleted/expire from the browser's cookie storage system.

This technological improvement solution applies (i) to first-party cookies, and (ii) to third-party cookies, in the latter case always provided that there are no technical limitations preventing the deletion of the cookies.

Specifically, in the section “3. Cookie Deletion/Expiration Model” of the document “Cookie System” which is included as Annex I, it is explicitly detailed that a model has been implemented by which all cookies that have not been accepted by the user are deleted/expire from the browser.

Specifically, if a user rejects the cookies, none of the cookies integrated through Google Tag Manager will be used. Therefore, none of the cookies listed in the following list will be used:

(...).

Third.- Additionally, and also within the same process of continuous improvement in demonstrating compliance and due to concern for the user, my client has implemented a change in the Cookie Policy (accessible from the cookie banner or from the footer of the Site).

The change in the Cookie Policy is aimed at improving information and transparency in cases where the cookie management or configuration system does not allow for the deletion of cookies once accepted by the user, thus providing information about the tools provided by the

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browsers, warning that if the user accepts third-party cookies and subsequently wishes to delete them, they can do so from their own browser. The information in this regard has been incorporated in the second, third, and fourth paragraphs of section "4. How can I manage the use of Cookies on this Platform?" of the Cookie Policy.

For all the above reasons, through this document, I hereby REQUEST that this writing be considered presented and the previous Allegations formulated in the referenced File, and after the appropriate procedures, a Resolution be issued declaring the non-existence of any infringement attributable to MASSIMO DUTTI concerning the described facts and the indicated regulations, proceeding to archive the proceedings.

ELEVENTH: On 06/06/23, this Agency accessed the website ***URL.1 again, confirming the following characteristics regarding its "Cookie Policy":

A.- Regarding the cookies detected upon accessing the website:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website in question and using the cookie detection tool of the Google Chrome browser (→ inspect → application → cookies), it has been verified that the following cookies are used:

Cookies detected as technical or necessary.

Necessary cookies according to the "Cookie Policy" of Akamai Technologies, Inc.

Unclassified cookies that the entity GRUPO MASSIMO DUTTI states are necessary in its "Cookie Policy"

_abck

bm_sz

OptanonConsent

ak_bmsc

AKA_A2

RT

ITXSESSIONID

MDSESSION

bm_mi

bm_sv

B.- Regarding the existing information about cookies on the homepage and their management:

Upon entering the website for the first time, a banner appears on the main page with the following message:

We use our own and third-party cookies for analytical purposes and to show you advertising related to your preferences based on your browsing habits and your profile. You can configure or reject cookies by clicking on "Cookie Settings." You can also accept all cookies by pressing the "Accept all cookies" button. For more information, you can visit our <>

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<>

<>

If you wish to manage the use of cookies through the link <> available in the information banner, the website displays a control panel where the different groups of cookies are pre-checked in the "OFF" position:

Technical or necessary cookies

<>

Functionality or personalization cookies

OFF → ON

<>

Analytical cookies

OFF → ON

<>

Advertising cookies

OFF → ON

<>

Social Media cookies

OFF → ON

<>

<> <> <>

If you choose <> without having modified any of the boxes from the “OFF” position to the “ON” position, or by clicking on the option <> with the intention of rejecting cookies that are not technical or necessary, in both cases, it is verified that the website continues to use the same cookies detected initially.

C).- Regarding the possibility of withdrawing consent for the use of cookies once granted.

Once consent for the use of cookies has been granted through the option available in the initial banner or through consent given in the control panel <>, it is verified that the following third-party cookies are installed:

MUID

.clarity.ms

/__Secure-1PAPISID .google.es

/APISID

.google.es

/__Secure-3PSID

.google.es

/

SSID

A

.google.es

/__Secure-1PSID

.google.es

/__Secure-3PAPISID .google.com

/SAPISID

.google.com

/

SSID

.google.com

/HSID A

.google.com

/SID

.google.es

/__Secure-1PSID

.google.com

/SIDCC

.google.com

/SID

.google.com

/

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17/24
__Secure-3PSID
.google.com
/__Secure-3PAPISID .google.es
/
MUID 3
.bing.com
/__Secure-1PSIDCC .google.com
/
APISID
.google.com
/__Secure-3PSIDCC .google.com
/
SAPISID
.google.es
/__Secure-1PAPISID .google.com
/
ANONCHK
.c.clarity.ms
/CLID
.clarity.ms
/
NID
.google.es
/SEARCH_E
.google.com
/
MR
.c.clarity.ms
/ts
.creativecdn.com/
_RwBf
.bing.com
/ACLUSR
.bing.com
/
ACL
.bing.com
/OIDR
.bing.com
/
SM
.c.clarity.ms
/BFB
.bing.com
/
BFBUSR
.bing.com
/SRCHUSR
.bing.com
/
SRCHD

.bing.com
/_ttp
.tiktok.com
/
1P_JAR
.google.com
/AID
.google.com
/
tt_viewer
.teads.tv
/AEC
.google.com
/
CONSENT
.google.com
/SOCS
.google.com
/
NID
.google.com
/OTZ
.google.com
/
u
.creativecdn.com
/OID
.bing.com
/
OIDI
.bing.com
/_pinterest_ct_ua
.ct.pinterest.com
MR
.c.bing.com
/SRCHHPGUSR
.bing.com
/
SRCHUID
.bing.com
/SRM_B
.c.bing.com
/

There is a link to the control panel at the bottom of the website <> that allows the user to manage the cookie groups again through the control panel. It is noted that now, (after accepting all cookies) the groups are pre-checked in the "ON" option.

If you wish to reject the use of cookies by clicking on the <> option or moving the cursor from the "ON" position to the "OFF" position of the different cookie groups, and clicking on <>, it is observed that the website NO longer uses the cookies that were consented to, using only the technical or necessary cookies detected at the beginning.

D.- Regarding the information provided in the "Cookie Policy":

If you access the "Cookie Policy" through the link available in the cookie banner on the first layer or through the link available at the bottom of the main page, the website displays a document:

***URL.7

where it informs about what cookies are; the different types of cookies that exist, and it informs about the type of cookies used on the website and their purpose. It also informs how to update the terminal equipment's browser to manage cookies.

If you want to know the list of cookies that the website claims to use, you must access through the links available in the control panel (<>), where the list of cookies used by the website and their purpose appears.

PROVEN FACTS.

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From the actions taken in this procedure, the following facts have been established:

First: In the verification carried out by this Agency on 16/03/23 on the website ***URL.1, the following characteristics were verified in its "Cookie Policy":

a).- Regarding the use of non-essential cookies without prior user consent, it was verified that, upon entering the main page and without taking any action on them, nor accepting the cookies, it was confirmed that cookies were being used, among which are two performance cookies ("AKA_A2" and "RT") that, although they appear with the domain "***DOMINIO.1", are used by Akamai Technologies, Inc. (a computing platform for the global delivery of Internet content for client companies) to optimize the response time between the visitor and the website. According to Akamai Technologies, Inc., this platform stores the content of a client company's server (Massimo Dutti) on its own servers; these cookies are necessary as they allow counting visits and traffic sources to improve the website's performance. They claim that all information collected by these cookies is aggregated and, therefore, anonymous.

Four cookies that could not be classified have also been detected (ITXSESSIONID; MDSESSION; bm_mi; bm_sv), although the website's responsible party (GRUPO MASSIMO DUTTI, S.A) classifies them in the list that appears in the control panel as strictly necessary cookies.

When consent is given for the use of cookies through the option available in the initial banner or through consent given in the control panel <>, it is verified that the following third-party cookies are installed: MUID; ts; CONSENT; SOCS; CLID; _ga; _gid; ttp; u; NID; AEC; _pinterest_ct_ua and 1P_JAR. Therefore, it can be considered that the website does not use cookies that are not technical or necessary until the user gives consent for it.

b).- Regarding the cookie information banner present in the first layer, it was considered that it did not provide "clear and complete" information about the purposes of the processing, as it was limited to stating that cookies would be used "to improve site navigation, analyze its use, and collaborate with our marketing studies."

c).- Regarding the withdrawal of consent once given, it was verified that there was no mechanism or permanent access to the control panel that allowed the withdrawal of consent after it had been given.

Second: In the verification carried out by this Agency on 19/04/23 on the website ***URL.1, the following characteristics were verified in its "Cookie Policy":

a).- Regarding the use of non-essential cookies without prior user consent, it was verified that, upon entering the main page and without taking any action on them, nor accepting the cookies, it was confirmed that cookies were being used.

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cookies, including two performance cookies ("AKA_A2" and "RT") which, although appearing with the domain "***DOMINIO.1", are used by Akamai Technologies, Inc. (a computing platform for the global

delivery of Internet content for client companies) to optimize the response time between the visitor and the website. According to Akamai Technologies, Inc. (a platform that stores the content of a client company's server (Massimo Dutti) on its own servers), these cookies are necessary as they allow for counting visits and traffic sources in order to improve the website's performance. They claim that all information collected by these cookies is aggregated and, therefore, anonymous.

Four cookies have also been detected that could not be classified (ITXSESSIONID; MDSESSION; bm_mi; bm_sv) although the website operator (GRUPO MASSIMO DUTTI, S.A) classifies them in the list that appears in the control panel as strictly necessary cookies.

When consent is given for the use of cookies through the option available in the initial banner or through consent given in the control panel <>, it is verified that the following third-party cookies are installed, whose providers are: Google, Bing.com; Clarity.ms; .teads.tv and creativecdn.com.

b).- Regarding the cookie information banner present in the first layer, the following message can be read:

We use our own and third-party cookies for analytical purposes and to show you advertising related to your preferences based on your browsing habits and your profile. You can configure or reject cookies by clicking on "Cookie settings". You can also accept all cookies by pressing the button "Accept all cookies". For more information, you can visit our

c).- Regarding the withdrawal of consent once given, it was verified that there is now a mechanism or access to a permanent control panel at the bottom of the page <> that allows access to the control panel for cookie management.

However, if you wish to reject the use of cookies by clicking on the option <> or by moving the toggle from the "ON" position to the "OFF" position and clicking on <>, it is observed that the website continues to use the third-party cookies installed when they were accepted at the beginning.

Third: In the verification carried out by this Agency on 06/06/23 on the website ***URL.1, it was verified, regarding the deficiencies detected in the cookie policy that, once consent is given for the use of cookies through the option available in the initial banner or through consent given in the control panel <>, if you wish to withdraw the consent given, there is a link to the control panel at the bottom of the website <> that allows the user to manage the cookie groups again through the control panel. It is observed that now, (after accepting

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All cookies) the groups are pre-checked in the "ON" option and if one wishes to reject the use of cookies by clicking on the "reject all" option or moving the slider from the "ON" position to the "OFF" position of the different cookie groups, and clicking on "confirm my preferences," it is observed that the website no longer uses the cookies that were initially consented to, reverting to using only the technical or necessary cookies detected at the beginning.

LEGAL GROUNDS

I.-

Competence:

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure, in accordance with the provisions of Article 43.1, second paragraph, of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

II.-

On the cookie information banner present on the first layer (main page):

In its guidelines on transparency, the GT29 recommends the use of layered privacy statements or notices, that is, containing information in layers, so that users can access those aspects of the statement or notice that are of greater interest to them, thus avoiding information fatigue, and without prejudice to the fact that all information is available in one place or in a complete document that can be

easily accessed if the interested party wishes to consult it in its entirety.

This system may consist of displaying essential information in a first layer when accessing the page or application, and completing it in a second layer through a page that offers more detailed and specific information about cookies.

The cookie banner on the first layer must include a generic identification of the purposes of the cookies that will be used, without the need to identify them.

In the case at hand, this Agency has confirmed the existence of two successive banners, the existence and content of which have been incorporated into the file:

Firstly, dated 09/23/22, the informative text of the banner was as follows:

"We use our own and third-party cookies for analytical purposes and to show you advertising related to your preferences based on your browsing habits and your profile. You can configure or reject cookies by clicking on 'Cookie Settings.' You can also accept all cookies by pressing the 'Accept all cookies' button. For more information, you can visit our Cookie Policy. Cookie Policy."

Dated 03/16/23, the text of the banner was as follows:

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"By clicking on 'Accept all cookies,' you agree that cookies will be stored on your device to improve site navigation, analyze its use, and collaborate with our marketing studies. 'Cookie Policy'"

The sanctioning procedure was initiated considering that this second banner did not provide "clear and complete" information regarding the purposes of the processing, the entity being claimed stated that both texts provided total equivalence in terms of information about the generic purposes that must be provided in the initial banner, comparing both texts:

Text published on 09/23/2022

Text published on 03/16/2023

"...analytical purposes..."

"...to improve site navigation, analyze its use..."

"...to show you advertising related to your preferences based on your browsing habits and your profile..."

"...to collaborate with our marketing studies..."

Providing complete information about the purposes of the cookies used in the "Cookie Policy" of the website,

***URL.7

Therefore, based on the evidence available, it is considered that the generic cookie information banner included on the main page of the website in question, dated 03/16/23, does not contradict what is stipulated in Article 22.2 of the LSSI, as it includes a generic identification of the purposes of the cookies that will be used.

III-1

On the withdrawal of consent for the use of cookies once granted.

Users must be able to withdraw the consent previously granted at any time. To this end, the publisher must ensure that it provides information to users in its cookie policy on how they can withdraw consent and delete cookies.

The user must be able to revoke consent easily. The system offered to withdraw consent must be as easy as that used when consent was granted. It will be considered that this ease exists, for example, when the user has easy and permanent access to the cookie management or configuration system. In this case, in the verification carried out by this Agency of the website in question, on 03/16/23, once consent was granted for the use of cookies that were not technical or necessary, through the option available in the initial banner or through consent granted in the control panel "Accept

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all>>, it was verified that third-party cookies were being installed, whose providers were Google, Bing.com; Clarity.ms; .teads.tv, and creativecdn.com.

However, it was found that there was no mechanism or access to the control panel that would allow the previously granted consent to be withdrawn and to reject these cookies that had been accepted beforehand.

Upon initiating this sanctioning procedure, and in light of the allegations presented by the responding party, a re-check of the website was conducted on 19/04/23, during which it was detected that the website had been modified to include a mechanism or access to a permanent control panel at the bottom of the page labeled <> that allowed access to the control panel for cookie management. However, if one wished to reject the use of non-technical or non-essential cookies that had been previously permitted, by clicking on the <> option or toggling the switch from the “ON” position to the “OFF” position and clicking on <>, it was observed that the website continued to use the third-party cookies that had been installed when initially accepted.

Following the allegations regarding the proposed resolution, a third verification of the website in question was carried out on 06/06/23, during which this Agency detected that, once consent had been granted for the use of non-technical or non-essential cookies, if one wished to withdraw the granted consent, the website NO LONGER used the cookies that had been consented to, reverting to the use of only the technical or necessary cookies detected initially, with the third-party cookies disappearing. In this regard, although it is noted that the website manager has modified the cookie policy to comply with current regulations, this does not eliminate the proven non-compliance that has been established since this Agency conducted the first verification of the website on 16/03/23.

III-2

Classification and Qualification of the Administrative Infraction

The deficiencies detected in the cookie policy, from the verification carried out on 19/04/23 to the last one on 06/06/23 on the website in question, regarding the impossibility of rejecting non-technical or non-essential third-party cookies once initial consent has been granted, constitutes a violation of the provisions established in Article 22.2 of the LSSI, as it states that:

“Service providers may use storage and data retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, regarding the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, on the protection of personal data.

When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate settings of the browser or other applications.

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The above shall not prevent the possible technical storage or access solely for the purpose of transmitting a communication over an electronic communications network or, to the extent that it is strictly necessary, for the provision of an information society service expressly requested by the recipient.”

III-3.

Sanction

This infringement is classified as “minor” in Article 38.4 g) of the aforementioned Law, which considers as such: “Using data storage and retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2.”, and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI. Considering the factors presented, the assessment of the fine for the infringement of Article 22.2 is

€5,000 (five thousand euros).

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection,

RESOLVES:

FIRST: TO IMPOSE on GRUPO MASSIMO DUTTI, S.A. with NIE: A78115201, responsible for the website ***URL.1, for an infringement of Article 22.2 of the LSSI, classified as “minor” in Article 38.4 g), a fine of €5,000 (five thousand euros).

SECOND: TO NOTIFY this resolution to GRUPO MASSIMO DUTTI, S.A.

To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period. Upon receiving the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not have knowledge of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection

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